23SMCV06064 23SMCV06064

County: los-angeles

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TENTATIVE
RULING

DEPARTMENT

207

HEARING DATE

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MATTER

Request
for Default Judgment

I.
BACKGROUND

This case arises from a business investment dispute.

On December 29, 2023, Plaintiffs Nektarios Zafeiris and Emily Aspiotis ("Plaintiffs") filed suit against Defendants Aleksandar Sasha Poparic

(“Poparic”); Immobilium, Inc. (“Immobilium”); Cali Miners, Inc. (“Cali Miners”); and Helvetia Holdings Group, LLC (“Helvetia”) (together, “Defendants.”) The Complaint alleges ten causes of action as follows:

(1) Fraud

(2) Breach of Contract

(3) Breach of the Implied Covenant of Good Faith and Fair Dealing

(4) Breach of Fiduciary Duty

(5) Violation of California Corporations Code sections 25102 and 25110

(6) Violation of California Corporations Code sections 25401 and 25501

(7) Common Counts

(8) Breach of Employment Contract

(9) Violation of California Labor Code sections 201, 202, 203, 2800, and 2802

(10) Negligence

Default was entered against all Defendants on March 4, 2024, but on June 17, 2024, the Court set aside the defaults. (See Minute Order, Jun. 17, 2024.)

Defendants filed an Answer to the Complaint on June 27, 2024. On July 9, 2024, Immobilium filed a cross-complaint against Plaintiff alleging three causes of action for (1) breach of oral contract; (2) breach of implied covenant of good faith and fair dealing; and (3) business defamation.

Plaintiffs moved to strike Defendants’ answer and the cross-complaint and for judgment on the pleadings as to the complaint on the grounds that the entities were “suspended” or “forfeited” at the time the Answer and Cross-Complaint were filed.

While the motion was pending, Immobilium requested dismissal of its cross-complaint without prejudice, which the Court granted.

After continuing the hearing to give the entity defendants an opportunity to revive their corporate statuses, on July 21, 2025, the Court struck the Answer of Cali Miners and Helvetia, as they lacked the capacity to file them and did not indicate any intent to revive their corporate statuses, and entered defaults against Cali Miners and Helvetia. However, the Court denied Plaintiff’s motion to strike Immobilium’s answer.

On March 18, 2026, the Court issued terminating sanctions against Defendants Poparic and Immobilium for failure to comply with the Court’s Trial Preparation Order, struck their Answer filed on June 27, 2024, and entered their defaults.

On June 18, 2026, the Court granted Plaintiff Aspiotis’s request for default judgment in the amount of $104,572.10, representing $46,960 in special damages, $20,000 in prejudgment interest, $2,272.71 in costs, and $35,339.39 in attorneys’ fees.

Plaintiff Zafeiris now requests default judgment in the amount of $65,591.60, representing special damage in the amount of $24,948; prejudgment interest in the amount of $7,484; costs in the amount of $2,272.71; and attorneys’ fees in the amount of $30,886.89.

II.

DAMAGES

As for Plaintiff Zafeiris, the Complaint alleges Zafeiris paid Defendants $40,000 under false pretenses for an interest in Immobilium, which was never provided, and only $15,000 of which was ever returned. (Complaint ¶¶ 33, 39, 40.) Thus, the Complaint alleges damages of $25,000 as to Plaintiff Zafeiris. As such, Plaintiff Zafeiris’s current request of $24,948 in special damages does not exceed those demanded in the Complaint. (See Code Civ. Proc., § 580, subd. (a) [“The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint”]; Levine v. Smith (2006)

145 Cal.App.4th 1131, 1136-1137 [“when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint”].)

In support of the request, Zafeiris advances the Declaration of Nektarios Zafeiris, which provides:

10. Between June 22 and 24, 2022, POP ARIC wrote my wife and me "I need partners in Greece", "We are getting big", and "People are jumping in like it's a gold rush". (Exh B-21 - 24) Responding to his exhortations, on June 23, 2022, I sent him US$25,000 towards what he represented would be an equity interest in IMMOBILIUM. I also sent him €9,755 (approx. $11,000) for IMMOBILIUM coins to a crypto wallet address he specified would hold the coins. He later informed my wife that the coins increased 50% in value. (Exh B-25) That wallet address is no longer accessible. (Exh B-1) He then sent me an "lmmobilium Investment Agreement" made out in blank and unsigned and which did not specify what shares I would receive.

19. Pursuant to the Withdrawal Agreement, POP ARIC agreed to pay me the principal sum ofUS$39,948 in monthly installments with the entire amount due in full by April 30, 2023. As of May 1, 2023, however, I had been paid only US$15,000, and no further payment has been received. The outstanding principal balance due as of that date is US$24,948.

24. Based on the above, I am informed and believe the total financial damage I have suffered due to Defendants' actions, omissions and misrepresentations is not less than the following:

a) Investment Withdrawal Agreement principal remaining balance: $ 24,948.00

(Zafeiris Decl. ¶¶ 10, 19, 24.) As such, Plaintiff Zafeiris has adequately substantiated the requested special damages of $24,948.

III.
PREJUDGMENT INTEREST

Pursuant to the Withdrawal Agreement, the full balance on the roughly

$40,000 investment was due by April 30, 2023.
(Ex. A-1 to Zafeiris Decl. at ¶ 2.)
Thus, prejudgment interest is owed on the $24,948 outstanding principal balance at the legal rate of 10% for the 1,096 days from April 30, 2023 through April 30, 2026. By the Court's calculation, $24,948 x 10% ÷ 365 days/yr x 1,096 days (from April 30, 2023 – April 30, 2026) = $7,491.24.

Therefore, Plaintiff Zafeiris's request for prejudgment interest in the amount of $7,484 is granted.

IV.
ATTORNEYS' FEES AND COSTS

Code of Civil Procedure section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.
(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [….]" Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

The Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code
Civ. Proc., § 1032, subd. (a)(4).)

In support of their requests for
attorneys' fees, Zafeiris advances the Withdrawal Agreement, paragraph 8 of
which includes the following provision:

8. ATTORNEYS' FEES AND COSTS. Company shall pay all costs incurred by
investor in collecting sums due under this Note after a default, including
reasonable attorneys' fees. If Investor
or Company sues to enforce this Note or obtain a declaration of its rights
hereunder, the prevailing party in any such proceeding shall be entitled to
recover its reasonable attorneys' fees and costs incurred in the proceeding
(including those incurred in any bankruptcy proceeding or appeal) from the
non-prevailing party.

(Ex.
A to Zafeiris Decl. at ¶ 8.)

Further, Corporations Code section
25501 entitles both Plaintiffs, as investors in securities, rescinding their
investment due to an untruth or omission, to recoup their reasonable attorneys'
fees and costs. (See Corp. Code, §
25501.)

Further, Plaintiff Zafeiris has
adequately supported the requests for attorneys' fees. (See Ex. C to Zafeiris Decl.) Therefore, Zafeiris's request for attorneys'
fees is granted.

Plaintiff also requests $2,272.71 in costs composed of $520.75 in filing fees, $972.31 in process server fees, and
$779.65 in documents & exhibits.
(See forms CIV-100.) Zafeiris's
requests for costs are granted as Zafeiris is a prevailing party in this
action. (Code Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

For the foregoing

reasons, Zafeiris's request for default judgment is granted.

The Court will
enter the proposed Judgment lodged on June 24, 2026 in conformity with the
ruling.

DATED: August 28, 2026 _/s/________________________________

Michael
E. Whitaker

Judge
of the Superior Court